SUBJECT: Adoption of Resolutions Submitting Proposed City Charter Amendments to the Voters

SOURCE: City Manager's Office

COMMENT: The City Charter serves as the foundational governing document for the City of Porterville and establishes the framework under which the City operates. Periodically, the Charter should be reviewed and updated to ensure it continues to meet the operational needs of the City.

The Charter Review Committee reviewed various provisions of the City Charter and provided recommendations for City Council consideration. On March 30, 2026, the City Council reviewed the recommendations of the Charter Review Committee and provided direction regarding proposed amendments to Sections 16 and 61 of the City Charter.

The proposed Charter amendments have been discussed in publicly noticed meetings of the Charter Review Committee and the City Council. The amendments presented for consideration reflect the direction provided by the City Council following its review of the Committee's recommendations.

The attached resolutions would submit the proposed Charter amendments to the voters at the November 3, 2026 General Municipal Election.

SECTION 61 – LOCAL CONTROL OF PUBLIC WORKS AND PROCUREMENT AUTHORITY

Section 61 of the City Charter currently contains provisions relating to competitive bidding requirements for public works projects. The current language was adopted decades ago and establishes procurement and contracting requirements that have remained largely unchanged over time.

Following review and discussion, the City Council directed staff to prepare a proposed amendment to repeal the existing Section 61 and replace it with a new section entitled “Local Control of Public Works and Procurement Authority.”

The proposed amendment would authorize the City to perform any work of improvement, replacement, repair, or maintenance by use of its own forces and provide that the City is not required to contract for such work, including construction work. The amendment would also authorize the City to contract with other public agencies for such work.

In addition, the proposed amendment would authorize the City to establish standards, procedures, rules, and regulations related to the purchasing of goods, property, and services.

The proposed amendment would further authorize the City Council to authorize the expenditure of public funds and the performance of work during emergencies affecting public health, safety, or welfare in accordance with applicable law.

As a charter city, the City of Porterville possesses constitutional authority over municipal affairs, including matters relating to public works contracting and procurement. Staff believes the proposed amendment would provide greater flexibility in the delivery of public services, align the Charter with modern public works practices, and allow the City Council to establish procurement procedures by ordinance, resolution, or policy as operational needs evolve.

The proposed ballot question is as follows:

"Shall the City Charter be amended to authorize the City Council to determine whether public works, maintenance, repair, improvement, and construction activities are performed by City forces, through contracts, or through agreements with other public agencies, and to authorize the City to establish purchasing and contracting procedures?"

If approved by the voters, the existing provisions of Section 61 would be repealed and replaced with a new Section 61 entitled "Local Control of Public Works and Procurement Authority."

SECTION 16 – VACANCIES IN OFFICE

Section 16 of the City Charter currently governs the process for filling vacancies occurring on the City Council.

Following review and discussion, the City Council directed staff to prepare a proposed amendment modifying the procedures for filling vacancies on the City Council.

Under the proposed amendment, a vacancy would be filled by appointment of the City Council if less than one year remains in the unexpired term. If one year or more remains in the unexpired term, the vacancy would be filled by a

special election in accordance with applicable law. The proposed amendment retains existing provisions relating to vacancies affecting a majority of the City Council and the circumstances under which an office becomes vacant.

The proposed amendment seeks to balance the efficient filling of short-term vacancies with the public's opportunity to elect representatives when a substantial portion of a term remains unexpired.

The proposed ballot question is as follows:

"Shall the City Charter be amended to require that vacancies on the City Council be filled by appointment of the City Council when less than one year remains in the unexpired term, and by a special election when one year or more remains in the unexpired term?"

If approved by the voters, Section 16 would be amended to establish the procedures for filling vacancies based upon the amount of time remaining in the unexpired term while retaining the existing provisions relating to majority vacancies and vacancy declarations.

The City will incur costs associated with conducting the November 3, 2026 General Municipal Election and preparing ballot materials. Based on preliminary estimates provided by the County of Tulare, the cost associated with placing each Charter amendment before the voters is anticipated to be approximately $35,000. Should both proposed Charter amendments be submitted to the voters, the total estimated election cost would be approximately $70,000.

In addition to election-related expenses, the City intends to conduct public outreach and educational efforts regarding the proposed Charter amendments. Outreach activities are anticipated to include informational booths at community events, social media communications, and other public engagement opportunities. These efforts are expected to be performed utilizing existing staff and resources, with no significant additional budgetary impact anticipated at this time.

Funding for election-related expenses has been included within the proposed FY 2026-2027 Budget.

RECOMMENDATION: That the City Council:

1. Adopt the Resolution submitting a proposed amendment to Section 61 of the City Charter relating to Local Control of Public Works and Procurement Authority to the voters at the November 3, 2026 General Municipal Election; and

2. Adopt the Resolution submitting a proposed amendment to Section 16 of the City Charter relating to Vacancies in Office to the voters at the November 3, 2026 General Municipal Election.

ATTACHMENTS:

1. Draft Resolution - Local Control of Public Works and Procurement Authority
2. Draft Resolution - Vacancies in Office

Appropriated/Funded:

Review By:

Department Director:
Richard Tree, City Manager

Final Approver: Fernando Gabriel-Moraga, Chief Deputy City Clerk

RESOLUTION NO. _____-2026

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF PORTERVILLE APPROVING AND CALLING FOR THE SUBMISSION TO THE VOTERS OF A CITY COUNCIL PROPOSED MEASURE TO AMEND CITY CHARTER SECTION 16 RELATING TO THE FILLING OF CITY COUNCIL VACANCIES AT A GENERAL MUNICIPAL ELECTION TO BE HELD IN THE CITY ON NOVEMBER 3, 2026

WHEREAS, the City Council desires to submit a proposed City Charter amendment to the voters at the General Municipal Election on November 3, 2026; and

WHEREAS, the City Council has determined that establishing a clear process for filling vacancies on the City Council promotes consistency, continuity of representation, and public understanding of the City's vacancy procedures; and

WHEREAS, the proposed charter amendment does not alter any procedural or substantive protection, right, benefit, or employment status of any local government employee or any retiree or of any local government employee organization; and

WHEREAS, the proposed charter amendment is an exercise of the City's constitutional home rule authority regarding matters of municipal affairs; and

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF PORTERVILLE AS FOLLOWS:

SECTION 1. That pursuant to requirements of the Charter of the City of Porterville and California Election Code, there is called and ordered to be held in the City of Porterville on Tuesday, November 3, 2026, a General Municipal Election for the purpose of submitting a City Council charter amendment proposal to the voters for approval.

SECTION 2. That the City Council, pursuant to its right and authority under State Government Code section 34458, and Elections Code sections 1415 (a)(2) and 9255, does order submitted to the voters at the municipal election on November 3, 2026, the following proposed charter amendment:

CITY OF PORTERVILLE CHARTER AMENDMENT MEASURE_____-2026	
Shall the City Charter be amended to require that vacancies on the City Council be filled by appointment of the City Council when less than one year remains in the unexpired term, and by a special election when one year or more remains in the unexpired term?	**YES**
	NO

SECTION 3. The City Council approves and adopts the complete text of the proposed amendment of City Charter Section 16 as follows, with deletions of existing text shown in strike out and additions shown in underlining for convenient reference only:

Section 16. Vacancies In Office; When Offices Declared Vacant.

A vacancy in any legislative office, from whatever cause arising excluding any vacancy created due to a successful recall election, shall be filled by ~~appointment by the council, such appointee to hold office until the next general municipal election, when a successor shall be chosen by the electors for the unexpired term; provided, that if the council fails to agree or for any other reason does not fill such vacancy within thirty days after the same occurs, then such vacancy shall be filled by the mayor; provided, however, that if for any reason the seats of a majority of the council shall become vacant, then the city clerk shall call a special election at once to fill the vacancies for the unexpired terms, and the same shall be conducted substantially in the manner provided for general municipal elections~~ appointment of the City Council if less than one year remains in the unexpired term. If one year or more remains in the unexpired term, the vacancy shall be filled by a special election conducted in accordance with applicable law. Notwithstanding the foregoing, if for any reason the seats of a majority of the council become vacant, then the city clerk shall call a special election at once to fill the vacancies for the unexpired terms, and the same shall be conducted substantially in the manner provided for general municipal elections.

If, without permission from the city council, any legislative officer of the city shall remove from the city or absent himself/herself therefrom for more than forty-five (45) days consecutively, or shall fail to attend five (5) consecutive regular city council meetings unless prevented from attending by sickness (but in no case for a period exceeding ninety (90) days), his/her office shall thereupon become vacant. If for said forty-five (45) day period any legislative officer shall willfully fail or refuse to perform the duties of his office, though able to do so, or shall fail to qualify, or shall resign, or be convicted of a felony or a crime of moral turpitude, or be adjudged mentally incompetent, his/her office shall thereupon become vacant.

SECTION 4. The City Council directs the City Clerk to transmit a copy of the proposed charter amendment to the City Attorney. The City Attorney is directed to prepare an impartial analysis of the proposal, not to exceed 500 words in length, showing the effect of the proposal on existing law and the operation of the proposal. The City Attorney is further directed to transmit the impartial analysis to the City Clerk within ten days of adoption of this Resolution.

SECTION 5. Pursuant to Elections Code section 9282, the City Council authorizes the Mayor, or the Mayor's designee, to file a written argument on behalf of the City Council regarding the measure, accompanied by up to four additional printed names and signatures of persons joining in the submission.

SECTION 6. Pursuant to Elections Code sections 9285 and 9287, the City Clerk, or County elections official as provided through the consolidated election process, is authorized and directed to

perform all duties required by law relating to the receipt, selection, exchange, filing, and printing of ballot arguments and rebuttal arguments for the measure.

The City Clerk or County elections official shall send a copy of the argument in favor of the measure to the authors of any argument against the measure and a copy of an argument against the measure to the authors of any argument in favor of the measure immediately upon receipt of the arguments.

The author or a majority of the authors of an argument relating to the measure may prepare and submit a rebuttal argument or may authorize in writing any other person or persons to prepare, submit, or sign the rebuttal argument.

The rebuttal argument shall not exceed 250 words. A rebuttal argument may not be signed by more than five persons. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

SECTION 7. That the City Clerk, or County elections official is authorized, instructed, and directed to procure and furnish any and all official ballots, notices, printed matter, and all supplies, equipment, and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

SECTION 8. Notice of the time and place of holding the election is hereby given and the City Clerk is authorized, instructed, and directed, in coordination with the County elections official, to give further or additional notice of the election in time, form and manner as required by law.

SECTION 9. Pursuant to Elections Code sections 10401 and 10403, the Board of Supervisors of the County of Tulare is hereby requested to consent and agree to the consolidation of the General Municipal Election to be held on Tuesday, November 3, 2026, for the submission of the measure.

SECTION 10. The Tulare County Registrar of Voters Office is hereby authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

SECTION 11. The Board of Supervisors of the County of Tulare is hereby requested to issue instructions to the Tulare County Registrar of Voters Office, to take any and all steps necessary for the holding of the consolidated election.

SECTION 12. The City Council of the City of Porterville recognizes that additional costs will be incurred by the County of Tulare by reason of this consolidation and hereby agrees to reimburse the County for these costs.

SECTION 13. The City Clerk is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the Registrar of Voters Office of the County of Tulare.

PASSED, APPROVED, AND ADOPTED this 16th day of June, 2026.

By: _____
Greg Meister, Mayor

ATTEST:
Richard Tree, City Clerk

By: _____
Fernando Gabriel- Moraga, Chief Deputy City Clerk